

Court No. - 21

Case :- WRIT - C No. - 7983 of 2023

Petitioner :- Sudheer Gupta

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Preet Pal Singh Rathore

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Learned counsel for the respondent electricity department seeks time to obtain instructions.

Put up as fresh on 23.03.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 15.3.2023

Jaswant

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The petitioner has challenged the recovery citation dated 03.11.2022 issued by the respondent-Electricity Department against him for recovery of electricity dues in a case of theft of electricity.

Sri Mukesh Kumar Singh, learned counsel appearing on behalf of the respondent-Electricity Department states that the impugned recovery has been withdrawn and a fresh order will be passed after providing opportunity of hearing to the petitioner.

Accordingly, we **dispose of** the instant petition with liberty to the respondent to pass fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

The concerned respondent shall provide checking report and other adverse material to the petitioner within a week and the petitioner will file objections within next two weeks.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 23.3.2023

Shivangi